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Terms of Use

Reason Studios

Version 1.2

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*Please read these Terms of Use carefully before accessing or using Reason Studios' website www.reasonstudios.com (including, for the avoidance of doubt, any specific developer site provided by Reason Studios) (collectively, the "**Website**"). The Website is offered to you conditioned upon your acceptance (without modification) of any and all terms, conditions and notices set forth below (the "**Terms of Use**").*

These Terms of Use contain information concerning your legal rights and limitations of these rights, as well as a section regarding applicable law and jurisdiction of disputes. By accessing or using the Website, you agree to be bound by these Terms of Use. If you do not wish to be bound these Terms of Use (or any future updated version of these Terms of Use) you may not access or use the Website.

Please be advised that the distribution of rack extension products via Reason Studios online marketplace is conditioned upon your acceptance of Reason Studios' distribution agreement.

1. GENERAL

1. The contractual relationship between you as a user (hereinafter "**you**" or the "**User**") and Reason Studios Aktiebolag, reg. no. 556546-2206, VAT no [SE556546220601], Hornsbruksgatan 23, SE-117 34 Stockholm, Sweden (hereinafter "**Reason Studios**", "**we**", "**our**"), and your access or use of the Website is governed by these Terms of Use.
2. By accessing or using the Website, you acknowledge and confirm your full acceptance of these Terms of Use and that you understand the rights, obligations, terms and conditions set forth herein.
3. Please note that we only provide the Website for educational, business, entrepreneurial and professional purposes, and not to individuals intending to use the Website in their capacity as consumers.
4. As a condition of your use of and access to the Website, you hereby represent and warrant that (i) you are at least eighteen (18) years of age (or the equivalent age of majority in your jurisdiction), (ii) you are using the Website for business, entrepreneurial or professional purposes, (iii) all information supplied by you via the Website is true, accurate, current and complete and (iv) you possess the legal authority to enter into these Terms of Use and to use the Website in accordance with all terms and conditions herein.
5. If you are using the Website on behalf of a third party, both you and such third party are jointly liable for your compliance with these Terms of Use, and you hereby represent and warrant that you are duly authorized to represent such party.
6. If you do not fully understand, agree and comply with these Terms of Use, or if you are unable to enter into legally binding contracts, you may not access or use the Website.

2. USE OF THE WEBSITE

1. You may only use the Website in accordance with these Terms of Use and for the sole purpose of developing products in conjunction with Reason Studios software. [Back to top ^](#)

2. At all times and at our sole and absolute discretion, Reason Studios reserves the right to deny access to the Website (or parts thereof). Furthermore, the content and features of the Website may be adapted or have different availability depending on your location and the information provided in your user profile. For example, certain content may only be available for and accessible to users at a certain geographic location or fulfilling certain criteria set by Reason Studios.
3. You are responsible for ensuring that your use and access of the Website at all times complies with these Terms of Use and any directions and instructions provided by Reason Studios from time to time.
4. When you access or use the Website (or parts thereof) you represent and warrant that you will not:
 - a. breach or circumvent (or encourage anything that would breach or circumvent) any laws, rules, regulations or third-party rights;
 - b. gain access (or attempt to gain access) to any area where you do not have a right or permission to be;
 - c. distribute or post spam or unsolicited electronic communications;
 - d. distribute viruses, malicious software, use any worms, trojan horses, cancelbots, spyware, corrupted files, time bombs, robots, scrapers, spiders or any other automatic means to access, damage, disrupt or interfere with the Website for any reason;
 - e. modify any file or any other part of the Website that Reason Studios does not specifically authorize you to modify;
 - f. collect information about other users without their consent;
 - g. take any action that imposes, or may impose, in our discretion, an unreasonable or disproportionately large load on our infrastructure;
 - h. frame, mirror or otherwise incorporate any part of the Website into any other website, software or service without our prior written authorization;
 - i. bypass, circumvent or interfere with any technical measures used by us to provide the Website;
 - j. sell, buy, trade or otherwise transfer your user account, any personal access to the Website or any content associated with your user account; or
 - k. impersonate another person or falsely imply that you are an employee or representative of Reason Studios.
5. If you (in Reason Studios' view) act in breach of these Terms of Use or otherwise abuse user names, passwords, the Website, Reason Studios reserves the right to (i) limit, suspend and deny your access to the Website; (ii) remove any of your User Generated Content (as defined below in Section 5.1); (iii) remove any special status or benefits associated with your account; (iv) take technical and/or legal steps to prevent further use of the Website; and (v) terminate your user account.
6. Please note that there may be times when the Website (or parts thereof) is unavailable due to technical or maintenance-related reasons (whether on a scheduled or unscheduled basis).

3. MARKETPLACE

1. Reason Studios provides a marketplace (the "**Marketplace**") that allows you to purchase, rent-to-own, subscribe to, download, view or use music hardware and software and ancillary products or services ("**Products**") for end users.
2. Unless specific terms and conditions apply for any Products, the terms and conditions set forth in these Terms of Use applies to your use of the Marketplace. Thus, unless otherwise specified in these Terms of Use, any reference to the Website herein shall be deemed to include the Marketplace.
3. Please note that some Products supplied via the Marketplace may allow you to create, edit, upload, and use content via third-party services. In order to use such third-party service, you may be required to read and accept the terms and conditions pertaining to such third-party services. Reason Studios assumes no liability for any third-party products and/or services provided through the Marketplace or Website.
4. Reason Studios endeavors to make Product description as accurate as possible. With that said, you acknowledge and agree that the Product descriptions are only used to identify the Product. The user experience of certain Products may differ regarding the hardware or software used in conjunction with the Product.
5. Should you wish to distribute your own Products via the Marketplace, specific terms and conditions apply. Please contact us through <https://help.reasonstudios.com/hc/requests/new> for more information.

4. USER ACCOUNTS

1. Certain use and access to the Website may require the creation and use of a user account. To create a user account, please follow the instructions provided. User accounts are personal and may not be transferred to any other person.
2. You are solely responsible for all use of the Website through your user account. If your user account gets lost or stolen or if you become aware of any known or suspected unauthorized use of your user account, you are required to immediately notify Reason Studios and to change your password. You are solely responsible for all use and transactions through your user name and password, until such notification is made to Reason Studios.
3. You are responsible for taking the necessary precautions to keep your user account, user name, password and other login credentials strictly confidential. If you give out, disclose or lose your user name and/or password, Reason Studios is not liable for any damage or loss arising therefrom.
4. You must always provide and maintain valid, complete and correct information to Reason Studios. You are obligated to provide any documents in writing that Reason Studios may find necessary in order to confirm the correctness of the information provided in connection with registration or verification procedures.
5. If you delete a user account, or if Reason Studios deletes your user account in accordance with these Terms of Use, you acknowledge and agree that you may lose access to any data associated with your account (including, but not limited to, any special status associated with your account).

5. USER GENERATED CONTENT

1. Please be aware that you are solely liable for any music compositions, sound samples, images, comments, data, videos, text, communications and other material uploaded into the Website (including, for the avoidance of doubt, any product or service provide on or via the Website) or otherwise provided by you to Reason Studios (jointly "**User Generated Content**").
2. By providing, uploading, publishing and/or disclosing User Generated Content, you represent and warrant to Reason Studios that you have the ownership rights and/or that you have obtained all required licenses and permissions from any necessary parties, to use the User Generated Content and grant Reason Studios the rights to use User Generated Content (and parts thereof) as specified in these Terms of Use.
3. You are in the best position to determine whether your User Generated Content risk violating any third-party rights, including that all necessary consents have been obtained from individuals depicted in User Generated Content. Therefore, you hereby agree to defend and hold Reason Studios harmless from and against any and all third-party claim arising out of or relating to Reason Studios' use, disclosure or publication of User Generated Content as contemplated by these Terms of Use.
4. User Generated Content may not contain any open source software, free software or other third-party products which may create an obligation for you, Reason Studios or any end user to disclose or distribute any software or source code on open source license terms or obligations.
5. By providing, publishing and/or disclosing User Generated Content, you hereby grant to Reason Studios and its affiliates a global, non-exclusive, sub-licensable, royalty free license to use, edit, reproduce, modify, disclose, distribute and/or publish such content within the Website. Reason Studios reserves (at its sole and absolute discretion) the right to refuse to accept, publish, disclose, use or otherwise make User Generated Content available.
6. Reason Studios reserves the unlimited right to delete and remove any and all User Generated Content that, in Reason Studios' view, is in breach of the Terms of Use and/or applicable laws, rules or guidelines.
7. You acknowledge and agree that you rely on User Generated Content provided by other users at your own risk and that Reason Studios expressly disclaims any liability for User Generated Content.

6. LICENSE

1. You are hereby granted a personal, revocable, non-exclusive, non-transferrable, non-sub licensable and limited right to access and use the Website on the terms and conditions included in these Terms of Use. Reason Studios reserves all rights not expressly granted under these Terms of Use.
2. Your right to use the Website (including all parts thereof) is subject to your continued compliance with these Terms of Use and applicable third-party terms and conditions.
3. Unless otherwise specified by Reason Studios in writing, you may not copy, modify, change, reverse engineer or disassemble the Website (or parts thereof), including, but not limited to, text, graphics, logos, icons, pictures, sound files, digital downloads, object code, source code and/or other thereto related material. You are expressly prohibited from any use of data mining, robots or similar data gathering and extraction tools in your use of the Website.
4. Reason Studios' trademarks, trade names and other signs included or referenced on the Website (the "**Marks**") are protected by national and international trademark laws. All use of the Marks is strictly prohibited without Reason Studios' prior written approval. The Marks may not be used in connection with any product or service that is not approved by Reason Studios. [Back to top](#)

manner that is likely to cause confusion among customers or that disparages or discredits Reason Studios.

7. OWNERSHIP

1. For the avoidance of doubt, except for the limited rights expressly granted to Reason Studios in these Terms of Use, Reason Studios does not acquire any ownership rights to User Generated Content or any of the rack extension products that you develop when using the Website.
2. Save for User Generated Content and your own rack extension products, any and all content in the Website, including text, graphics, logos, icons, pictures, sound files, digital downloads, object code, source code and/or other thereto related material are owned or licensed by Reason Studios.
3. Nothing in this Agreement shall be interpreted as a transfer of any of Reason Studios' material or intellectual property rights.
4. Notwithstanding anything to the contrary in these terms and conditions, you hereby grant to Reason Studios a limited license to retain and use any result from your use of the Website for the sole purpose of improving and developing Reason Studios products and services.

8. PERSONAL DATA AND OTHER INFORMATION

1. You hereby confirm that you have received information regarding our processing of your personal data, which is available at: [\[https://www.reasonstudios.com/agreements#privacy-policy\]](https://www.reasonstudios.com/agreements#privacy-policy).

9. LIABILITY, NON-WARRANTY AND INDEMNITY

1. Reason Studios endeavors to keep the Website (including the Marketplace and any other service offered on or via the Website) available at all times and to correct errors and defects without unnecessary delay. However, Reason Studios neither represents nor warrants that the Website (including the Marketplace and any other service offered on or via the Website) will be continuous, uninterrupted or error-free or that any defects will be corrected. Unless specifically agreed in writing, the Website and/or any product or other service provided by Reason Studios are provided on an "as-is" and "as available" basis, without any express or implied warranties whatsoever, including, but not limited to, implied warranties of non-infringement, merchantability and fitness for a particular purpose.
2. You acknowledge and accept that the Website may become unavailable due to planned or unplanned service, maintenance and/or updates.
3. Reason Studios expressly disclaims any liability in relation to User Generated Content.
4. If the Website contain links to websites or resources provided by third parties, such links are only provided for informational purposes, and Reason Studio has no control or liability for the content of such websites or resources.
5. You are responsible for the communication between your hardware and the Website, and that you have the hardware and software necessary to access and use the Website. You are solely liable for defects and limitations in your own software, hardware or telecommunications services.
6. Subject to willful misconduct or gross negligence and to the maximum extent permitted by law, Reason Studios is only liable for direct damages caused due to Reason Studios' breach of these Terms of Use and not for any indirect damages, including, but not limited to, loss of profits, business interruption, reputational harm, or loss of data (even if Reason Studios has been advised of the possibility of such damages or such damages are foreseeable) arising out of and in any way connected with your use of, or inability to use, the Website.

10. COPYRIGHT POLICY

1. Reason Studios respect the intellectual property rights of others and expects users of its services to do the same. Reason Studios will respond to notices of alleged copyright infringement that are properly provided.
2. If you believe or suspect that any User Generated Content or other material used on the Website or in conjunction with any product or service offered by Reason Studios is in breach of the Terms of Service or is used in a way that constitutes copyright infringement, please provide us with the following information: (i) a physical or electronic signature of the copyright owner or a person authorized to act on their behalf; (ii) identification of the copyrighted work claimed to have been infringed; (iii) identification of the material that is claimed to be infringing or to be the subject of infringing activity and that is to be removed (information reasonably sufficient to permit us to locate the material); (iv) your contact information, such as your address, telephone number, and an email address; (v) a statement by you that you have a good faith belief that use of the material in the manner complained of is not authorized by the copyright owner, its agent, or the law; and (vi) a statement that the information in the notification is accurate and that you are authorized to act on behalf of the copyright owner.
3. For notice of alleged copyright infringement, contact us at <https://help.reasonstudios.com/hc/requests/new>.

11. LINKS

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The Website may provide links or references to other websites. Reason Studios has no particular knowledge of information contained in such other websites and does not endorse companies or products to which it links. Reason Studios does not have any responsibility for the contents or policies of such other websites and does not accept any liability for any damages resulting from your access to or use of such other websites. For the avoidance of doubt, Reason Studios neither endorses nor verify the content, offerings or conduct of third parties. If you decide to access any of the third-party websites linked to the Website, you do so entirely at your own risk. Reason Studios reserves the right to terminate any link or linking program at any time.

12. FORCE MAJEURE

Any failure or delay by Reason Studios in the performance of its obligations of its services shall not be deemed a breach of its obligations to you if such failure or delay to the extent such failure or delay is caused by fire, flood, earthquake, elements of nature, public utility electrical failure, acts of war, terrorism, riots, civil disorders, rebellions or revolutions, strikes, lockouts, or labour difficulties, court order, outage, delays or disruptions of the Internet or telecommunications networks, third party non-performance or any other similar cause beyond the reasonable control of Reason Studios. Reason Studios does not accept any liability for the consequences arising out of any such force majeure events.

13. ENTIRE AGREEMENT, AMENDMENTS AND CHANGES

1. Unless otherwise expressly agreed, these Terms of Use constitutes the entire agreement between Reason Studios and the User concerning the Website and replaces all earlier agreements and understandings between us.
2. Reason Studios reserves the right to amend or change these Terms of Use at any time. Any changes to these Terms of Use will be notified to Users in advance and will enter into force upon acceptance by the Users. If you do not accept the amended or new Terms of Use you may not access, use or continue to use the Website. Reason Studios advises you to periodically review the Terms of Use in order to be informed of any changes.
3. Reason Studios reserves the right to change or modify the content and functions of the Website at any time without prior notification and will not be liable to any party in any way for possible consequences of such changes. Reason Studios may suspend, discontinue or restrict access to any portion of the Website at any time and without notice.
4. By using the Website after amendments and/or changes have entered into force, you have agreed to any and all such amendments and/or changes.
5. Reason Studios does not undertake to archive previous versions of these Terms of Use. Instead, Reason Studios recommends that you print and save a copy of each and every version of these Terms of Use.

14. MISCELLANEOUS

1. You are solely responsible for any cost or expenses related to your use of the Website and your development of rack extension products.
2. Reason Studios may wish to transfer all or part of our rights or responsibilities under these Terms of Use to a third party without obtaining your consent. Provided that such transfer does not (in Reason Studios view) cause any significant disadvantage to you, you hereby agree to such transfers.
3. Without Reason Studios' prior written consent, you may not transfer any of your rights granted under these Terms of Use.
4. If at any time any provision of these Terms of Use is or becomes invalid, illegal or unenforceable under applicable law, the validity, legality and enforceability of the remainder of these Terms of Use shall not be affected. In the event any provision is held in any proceeding to be invalid, illegal or unenforceable, the deficient provision shall be replaced with a new provision permitted by applicable law and having an economic effect as close as possible to the deficient provision.
5. Delay by either party to exercise a right or remedy under these Terms of Use shall not affect such party's right to enforce such right or remedy at a later time, except for failure to exercise a right or remedy within a time limit specified herein. A waiver by any party of any breach of any provision under these Terms of Use shall not be construed to be a waiver by such party in relation to subsequent breaches of such or other provisions herein.

15. GOVERNING LAW AND DISPUTES

1. If you have any concerns or complaints, please contact Reason Studios at <https://help.reasonstudios.com/hc/requests/new>.
2. These Terms of Use shall be governed by Swedish law, without reference to its conflict of laws principles.
3. Any dispute, controversy, or claim arising out of or in connection with these Terms of Use, or the breach, termination or invalidity thereof, shall be finally settled by arbitration administered by the Arbitration Institute of the Stockholm Chamber of Commerce (the "SCC").

4. The Rules for Expedited Arbitrations shall apply, unless the SCC in its discretion determines, taking into account the complexity of the case, the amount in dispute and other circumstances, that the Arbitration Rules shall apply. In the latter case, the SCC shall also decide whether the Arbitral Tribunal shall be composed of one or three arbitrators. The seat of arbitration shall be Stockholm. The language of the proceedings shall be English.
5. Notwithstanding the above, each party is entitled to commence proceedings before a Swedish court with general jurisdiction, if the amount in dispute does not exceed one hundred thousand (100 000) SEK. Stockholm district court shall be the first instance.

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